WHITFIELD CARTER LLP

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PROJECT DRAKE — LEGAL DUE DILIGENCE REPORT

Acquisition of Tidewell Marina Holdings Limited by Kingsford Group Limited

Report to the Board of Kingsford Group Limited | Dated 5 December 2025 | Ref SW/JO/WC-00148

1. INTRODUCTION AND SCOPE

This report summarises the findings of the legal due diligence carried out by Whitfield Carter LLP on Tidewell Marina Holdings Limited (the “Target”) in connection with the proposed acquisition by Kingsford Group Limited. Our review covered corporate matters, the Properties, material contracts, employment, environmental, intellectual property, litigation and insurance, based on the documents made available in the data room to 30 November 2025 and the replies to our enquiries. This report is subject to the general assumptions and limitations set out in Appendix 1 and is qualified by the matters recorded in the disclosure letter.

2. EXECUTIVE SUMMARY — KEY FINDINGS AND RISK RATING

Ref	Area	Finding	Risk	Action / mitigation
A	Title to shares	Shares owned 70/30 by G. and E. Tidewell; clean title, no options or encumbrances.	Low	Standard title warranties.
B	Port Solent lease	Change-of-control consent required (cl. 4.12).	Medium	Condition to completion; consent obtained 28 N
C	Hamble contamination	Phase I identified historic hydrocarbon contamination; Phase II in progress.	Medium–High	Specific indemnity, cap £250,000 (SPA cl. 9.4).
D	Fuel supply contract	Change-of-control termination right (60 days).	Medium	Supplier confirmed it will not exercise.
E	Employment	64 employees; harbour master 6-month notice; settled 2025 claim.	Low	Disclosed; warranty 11.
F	Tax	No open enquiries; standard tax covenant taken.	Low	Tax covenant, 7-year limit.

3. CORPORATE

The Target is a private company limited by shares incorporated in England and Wales (number 06738214). Its issued share capital is 1,000,000 ordinary shares of £0.01 each, held as to 700,000 by Gregory Tidewell and 300,000 by Eleanor Tidewell. The statutory registers are complete and up to date. The Target has no subsidiaries. The articles contain pre-emption rights on transfer which are being waived on the share sale.

4. PROPERTY

The Target operates from three sites: freehold land at Tidewell Yard, Hamble-le-Rice (HM Land Registry title HP482116); freehold marina berths at Lymington Quay (title HP501338); and a leasehold dry-stack facility at Port Solent held under a 15-year lease dated 4 June 2014. The Port Solent lease contains a change-of-control provision at clause 4.12 requiring the landlord’s prior written consent, which has been obtained. The tenant-only break at the tenth anniversary (4 June 2024) was not exercised and has lapsed. No material breaches of covenant were identified.

5. ENVIRONMENTAL

A Phase I environmental assessment dated July 2025 identified historic hydrocarbon contamination in the boatyard hardstanding at the Hamble site, consistent with the long-standing operational use. A Phase II

intrusive investigation is in progress. We have negotiated a specific indemnity from the Sellers in respect of the reasonable cost of any required remediation, capped at £250,000 (SPA clause 9.4). We recommend the Buyer obtains the Phase II report before any release of the escrow.

6. MATERIAL CONTRACTS

The principal contracts are the berthing and mooring agreements with berth-holders (largely on the Target's standard terms), the fuel supply agreement with Solent Marine Fuels Limited dated 1 January 2023 (which contains a change-of-control termination right exercisable within 60 days of completion; the supplier has confirmed in writing it will not exercise it), and chandlery and boat-sales agency arrangements in the ordinary course. No other unusual or onerous long-term contracts were identified.

7. EMPLOYMENT

The Target employs 64 people. The harbour master, Mr D. Halloran, is on a six-month notice period and has indicated an intention to retire in 2026. A wrongful-dismissal claim by a former berthing assistant was settled in March 2025 for £9,500, which has been paid. No collective consultation or TUPE issues arise on a share sale. Pension provision is limited to a defined-contribution auto-enrolment scheme.

8. LITIGATION, IP AND INSURANCE

Other than the settled employment matter and a small debt-recovery claim by the Target for £4,200 of unpaid mooring fees, there is no litigation pending or threatened. The Target owns the "Tidewell" name and marks; no infringement claims are outstanding. Insurance cover (including marina operators' liability and pollution cover) is in place and premiums are paid.

9. RECOMMENDATION

Subject to the matters in this report and the protections negotiated in the SPA and disclosure letter (in particular the environmental indemnity and the warranty/indemnity package with an aggregate cap of 27.5% of the equity consideration), we consider the legal risk profile of the acquisition to be acceptable and consistent with the commercial terms approved by the Board.